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Athens, 26-04-2023

Protocol No.: 1042

DECISION 15/2023

(Department)

The Hellenic Data Protection Authority convened in a Department composition, via teleconference, on Wednesday 05-04-2023, following an invitation from its President, in order to examine the case referred to in the background of this document. Present were Georgios Batzalexis, Deputy President, due to the absence of the President of the Authority, Konstantinos Menoudakis, and the alternate members Dimosthenis Bougioukas, as rapporteur, and Maria Psalla, replacing the regular members Konstantinos Lamprinoudakis and Grigorios Tsolias, who, although duly summoned in writing, did not attend due to conflict. Also present at the meeting was Leonidas Roussos, as assistant rapporteur, and by order of the President, Irini Papageorgopoulou as Secretary, an employee of the administrative affairs department of the Authority.

The Authority took into account the following:

The Authority issued its Decision No. 18/2022 concerning the sending of unsolicited political communication via SMS by A for the promotion of his candidacy in the recent municipal elections. The Authority also issued its Decision No. 63/2022 concerning the revocation of related decisions. The Authority, after examining all the elements of the file, having heard the rapporteur and the clarifications of the assistant rapporteur and following a thorough discussion,

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CONSIDERED IN ACCORDANCE WITH THE LAW

1. With the aforementioned Decision No. 63/2022 of the Authority, a series of decisions of the Authority were revoked in which sanctions had been imposed based on the provision of Article 11 of Law 3471/2006 and not on the provisions of the GDPR, which continues to apply for the assessment of the legality of each processing.

2. In Decision No. 18/2022 of the Authority, such a sanction was imposed.

FOR THESE REASONS

The Authority revokes its Decision No. 18 of the year 2022.

The Deputy President

Georgios Batzalexis

The Secretary

Irini Papageorgopoulou